



Telecommunications (Transitional Provisions and Consequential Amendments) Act 1991

No. 99, 1991

Compilation No. 3

Compilation date:	1 July 2016
Includes amendments up to:	Act No. 33, 2016
Registered:	18 July 2016

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Telecommunications (Transitional Provisions and Consequential Amendments) Act 1991* that shows the text of the law as amended and in force on 1 July 2016 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1—Preliminary	1
1 Short title	1
2 Commencement	1
Part 2—Transitional provisions	2
3 Interpretation	2
4 Application	2
5 Pre-existing notifications and directions to AUSTEL	2
6 Pre-existing advisory committees established by AUSTEL	3
7 Existing carriers may continue to operate pending grant of licences	3
8 Disclosure of pre-existing communications	4
9 Relief in respect of past infringing conduct	4
10 Pre-existing interconnection rights	4
11 Pre-existing class licences	4
12 Pre-existing eligible services	5
13 Pre-existing numbers	5
14 Effect of standards determined under section 106 of the <i>Telecommunications Act 1989</i>	6
15 Pre-existing authorities for connection of customer equipment	6
16 Pre-existing licences for performing cabling work	6
17 Pre-existing delegations by AUSTEL	7
18 Continuation of investigations	7
19 Existing members and associate members of AUSTEL	8
20 Existing regulations under <i>Telecommunications Act 1989</i>	8
21 Existing regulations under <i>Telecommunications (Application Fees) Act 1989</i>	9
22 Application of State and Territory laws to Telecom	9
Part 3—Repeals	10
23 Repeal of regulatory legislation	10
24 Repeal of Acts relating to Telecom and OTC	10
Part 4—Amendments consequential on Telecommunications Act 1991	11
25 Amendments consequential on new regulatory legislation	11

Part 5—Amendments consequential on Australian and Overseas Telecommunications Corporation Act 1991	12
26 Amendments consequential on formation of AOTC	12
Schedule 1—Amendments consequential on Telecommunications Act 1991	13
<i>AUSSAT Act 1984</i>	13
<i>Australian Broadcasting Corporation Act 1983</i>	13
<i>Australian Postal Corporation Act 1989</i>	14
<i>Australian Telecommunications Corporation Act 1989</i>	14
<i>Broadcasting Act 1942</i>	15
<i>Crimes Act 1914</i>	15
<i>Ombudsman Act 1976</i>	18
<i>OTC Act 1946</i>	18
<i>Radiocommunications Act 1983</i>	18
<i>Satellite Communications Amendment Act 1988</i>	19
<i>Sea Installations Act 1987</i>	19
<i>Telecommunications (Interception) Act 1979</i>	19
Schedule 2—Amendments consequential on Australian and Overseas Telecommunications Corporation Act 1991	22
<i>Crimes Act 1914</i>	22
<i>Freedom of Information Act 1982</i>	22
<i>Sea Installations Act 1987</i>	22
Endnotes	24
Endnote 1—About the endnotes	24
Endnote 2—Abbreviation key	26
Endnote 3—Legislation history	27
Endnote 4—Amendment history	28

**An Act to enact transitional provisions, and to
repeal some Acts and amend others, because of the
enactment of the *Telecommunications Act 1991*, the
*Australian and Overseas Telecommunications
Corporation Act 1991* and associated Acts**

Part 1—Preliminary

1 Short title

The Act may be cited as the *Telecommunications (Transitional Provisions and Consequential Amendments) Act 1991*.

2 Commencement

- (1) Part 1 commences on the day on which this Act receives the Royal Assent.
- (2) Part 2, Part 3 (except section 24) and Part 4 commence on 1 July 1991.
- (3) Section 24 and Part 5 commence on the day fixed under subsection 2(1) of the *Australian and Overseas Telecommunications Corporation Act 1991*.

Telecommunications (Transitional Provisions and Consequential Amendments) 1
Act 1991

Compilation No. 3

Compilation date: 1/7/16

Registered: 18/7/16

Part 2—Transitional provisions

3 Interpretation

- (1) In this Part:

AUSSAT means AUSSAT Pty Ltd.

OTC means OTC Limited.

- (2) In this Part, unless the contrary intention appears, expressions have the same meanings as in the *Telecommunications Act 1991*.
- (3) The operation of this Part in relation to Norfolk Island is not affected by the amendments made by Division 1 of Part 1 of Schedule 5 to the *Territories Legislation Amendment Act 2016*.

4 Application

This Part has effect despite anything contained in the *Telecommunications Act 1991*.

5 Pre-existing notifications and directions to AUSTEL

- (1) Any notification or direction given to AUSTEL under section 28 or 29 of the *Telecommunications Act 1989* and in force immediately before the repeal of that section is taken to have been given to AUSTEL under section 49 or 50, as the case may be, of the *Telecommunications Act 1991* on the commencement of that last-mentioned section.
- (2) A reference in a notification or direction referred to in subsection (1) to a provision of the *Telecommunications Act 1989* is a reference to the provision of the *Telecommunications Act 1991* that corresponds, or most closely corresponds, to the first-mentioned provision.

6 Pre-existing advisory committees established by AUSTEL

- (1) Any advisory committee that was established by AUSTEL under section 32 of the *Telecommunications Act 1989* and was in existence immediately before the repeal of that section is taken to have been established under section 53 of the *Telecommunications Act 1991* on the commencement of that last-mentioned section.
- (2) Any direction that was given by AUSTEL under subsection 32(3) of the *Telecommunications Act 1989* to a committee referred to in subsection (1) of this section and was in force immediately before the repeal of that subsection is taken to have been given to AUSTEL under subsection 53(3) of the *Telecommunications Act 1991* on the commencement of that last-mentioned subsection.

7 Existing carriers may continue to operate pending grant of licences

- (1) In this section:

corporation to which this section applies means AUSSAT, OTC or Telecom.
- (2) A corporation to which this section applies may, after the commencement of this section, continue to perform the functions and exercise the powers that it was entitled to perform and exercise immediately before that commencement until:
 - (a) a decision is made by the Minister whether to grant to the corporation a licence under section 57 of the *Telecommunications Act 1991*; or
 - (b) the Minister, by notice published in the Gazette, determines that this section is to cease to apply to the corporation;whichever first occurs.
- (3) A corporation to which this section applies is taken to have been a general carrier within the meaning of the *Telecommunications Act 1991*, otherwise than for the purposes of Divisions 2 and 3 of Part 5, and Parts 8 and 9 of the Act, during the period beginning on 1 July 1991 and ending on the day on which the corporation

became the holder of a general telecommunications licence in force under Part 5.

8 Disclosure of pre-existing communications

Section 88 of the *Telecommunications Act 1991* applies to any disclosure or use by a person of a fact or document that takes place after the commencement of that section even though:

- (a) it relates to a communication that was carried, or a telecommunications service that was supplied, before that commencement; or
- (b) the fact or document came to the knowledge, or into the possession, of the person before that commencement.

9 Relief in respect of past infringing conduct

Despite the repeal of section 69 of the *Telecommunications Act 1989*, that section continues in force in respect of conduct that was engaged in before that section was repealed.

10 Pre-existing interconnection rights

If, immediately before the commencement of section 137 of the *Telecommunications Act 1991*, a carrier within the meaning of the *Telecommunications Act 1989* had, under section 49 of the *Telecommunications Act 1989* or section 10A of the *AUSSAT Act 1984*, a right to interconnect its facilities to another carrier's network on payment of an amount agreed between them or determined by AUSTEL, the payment of that amount is a term and condition for the purposes of the right of the first-mentioned carrier to interconnect its facilities to that other carrier's network under section 137 of the *Telecommunications Act 1991* and is taken to have been agreed or determined as mentioned in paragraph 137(2)(b) of that Act.

11 Pre-existing class licences

- (1) Until class licences are issued under section 209 of the *Telecommunications Act 1991*, services supplied after the

commencement of that section in accordance with class licences within the meaning of the *Telecommunications Act 1989* that were issued under section 75 of that Act and were in force immediately before the repeal of that section are taken to be supplied under class licences issued under the first-mentioned section.

- (2) This section has effect subject to section 12 of this Act.

12 Pre-existing eligible services

- (1) Where, immediately before the repeal of section 104 of the *Telecommunications Act 1989*:
- (a) a person was supplying a value added service, or a private network service, within the meaning of that Act:
 - (i) that was connected to a telecommunications network operated by a carrier within the meaning of that Act; and
 - (ii) in respect of the supply of which the person had obtained the carrier's approval; and
 - (b) because of subsection 104(1) of that Act, the service was taken to be supplied under a class licence within the meaning of that Act;
- then, so far as it is supplied after that repeal, the service is taken to be an eligible service supplied under a class licence within the meaning of the *Telecommunications Act 1991*.
- (2) However, if at any time after that repeal the person supplies the service in a way that is not in accordance with that approval, subsection (1) ceases to apply in relation to the supply of the service by the person.

13 Pre-existing numbers

Section 241 of the *Telecommunications Act 1991* does not prohibit the provision of a telecommunications service by the use of numbers allocated before the national numbering plan referred to in that section is prepared.

14 Effect of standards determined under section 106 of the *Telecommunications Act 1989*

A technical standard that, immediately before the repeal of section 106 of the *Telecommunications Act 1989*, was in force under that section has effect after that repeal (including for the purposes of section 46A of the *Acts Interpretation Act 1901*) as if:

- (a) section 246 of the *Telecommunications Act 1991* had commenced on the day when the standard was determined; and
- (b) the standard had been determined under section 246 of the *Telecommunications Act 1991*.

15 Pre-existing authorities for connection of customer equipment

Where, immediately before the commencement of Part 12 of the *Telecommunications Act 1991* there was in force a permit (in this section called the ***previous permit***) issued under section 118 of the *Telecommunications Act 1989* or a permit (in this section also called the ***previous permit***) taken by section 126 of that Act to be issued under Division 4 of Part 5 of that Act:

- (a) the previous permit is taken, on that commencement, to be a permit (in this section called the ***new permit***) issued under Division 6 of Part 12 of the *Telecommunications Act 1991*, being a permit that includes the conditions (if any) to which the previous permit was subject immediately before that commencement; and
- (b) the person who was, or was taken to be, the holder of the previous permit is taken, on that commencement, to be the holder of the new permit.

16 Pre-existing licences for performing cabling work

Where, immediately before the commencement of Part 12 of the *Telecommunications Act 1991* there was in force a cabling licence (in this section called the ***previous cabling licence***) issued under section 131 of the *Telecommunications Act 1989* or a cabling licence (in this section also called the ***previous cabling licence***)

taken by section 139 of that Act to be issued under Division 5 of Part 5 of that Act:

- (a) the previous cabling licence is taken, on that commencement, to be a cabling licence (in this section called the ***new cabling licence***) issued under Division 7 of Part 12 of the *Telecommunications Act 1991*, being a cabling licence that includes the conditions (if any) to which the previous cabling licence was subject immediately before that commencement; and
- (b) the person who was, or was taken to be, the holder of the previous cabling licence is taken, on that commencement, to be the holder of the new cabling licence.

17 Pre-existing delegations by AUSTEL

Any delegation of a function or power of AUSTEL under the *Telecommunications Act 1989* that was made under section 140 of that Act and was in force immediately before the repeal of that section continues in force after the commencement of section 279 of the *Telecommunications Act 1991* as a delegation made under that section of the corresponding function or power of AUSTEL under that Act, being a function or power that AUSTEL is authorised by that section to delegate.

18 Continuation of investigations

- (1) Where before the repeal of Part 6 of the *Telecommunications Act 1989* AUSTEL had commenced, but had not concluded and reported on, an investigation under that Part, AUSTEL may complete and report on the investigation in accordance with that Part.
- (2) Where before the repeal of Part 6 of the *Telecommunications Act 1989* the Minister had requested AUSTEL to conduct an investigation under that Part but AUSTEL had not concluded and reported on the investigation, AUSTEL must commence, or continue, as the case may be, and conclude and report on, the investigation in accordance with that Part.

-
- (3) Part 6 of the *Telecommunications Act 1989* continues in force for the purposes of this section.

19 Existing members and associate members of AUSTEL

- (1) A person who held office as a member of AUSTEL immediately before the repeal of Part 7 of the *Telecommunications Act 1989* continues in office for the unexpired portion of the period of his or her appointment as if:
- (a) section 368 of the *Telecommunications Act 1991* had been in force when the appointment was made; and
 - (b) the person had been appointed under that section.
- (2) A person who held office as an associate member of AUSTEL immediately before the repeal of Part 7 of the *Telecommunications Act 1989* continues in office for the unexpired portion of the period of his or her appointment as if:
- (a) section 369 of the *Telecommunications Act 1991* had been in force when the appointment was made; and
 - (b) the person had been appointed under that section.
- (3) Any directions given under subsection 160(5) of the *Telecommunications Act 1989* to a person referred to in subsection (2) that were in force immediately before the repeal of that Act continue in force as if:
- (a) subsection 369(2) of the *Telecommunications Act 1991* had been in force when the direction was given; and
 - (b) the directions had been given under that subsection.

20 Existing regulations under *Telecommunications Act 1989*

- (1) Subject to subsection (3), any regulations made under section 185 of the *Telecommunications Act 1989* and in force immediately before the repeal of that section continue in force as if made under section 406 of the *Telecommunications Act 1991*.
- (2) A reference in a regulation so continued in force to a provision of the *Telecommunications Act 1989* is taken to be a reference to the corresponding provision of the *Telecommunications Act 1991*.

-
- (3) This section does not apply to a regulation the making of which would not be authorised by the *Telecommunications Act 1991*.

21 Existing regulations under *Telecommunications (Application Fees) Act 1989*

- (1) Subject to subsection (3), any regulations made under the *Telecommunications (Application Fees) Act 1989* and in force immediately before the repeal of that Act continue in force as if made under the *Telecommunications (Application Fees) Act 1991*.
- (2) A reference in a regulation so continued in force to a provision of the *Telecommunications Act 1989* is taken to be a reference to the corresponding provision of the *Telecommunications Act 1991*.
- (3) This section does not apply to a regulation the making of which would not be authorised by the *Telecommunications (Application Fees) Act 1991*.

22 Application of State and Territory laws to Telecom

- (1) Subject to section 59 of the *Australian Telecommunications Corporation Act 1989* and subsection (2) of this section, Telecom is not subject to any requirement, obligation, liability, penalty or disability under a law of a State or Territory to which the Commonwealth is not subject.
- (2) Subsection (1) applies only in relation to the period beginning at the commencement of this section and ending immediately before the commencement of section 116 of the *Telecommunications Act 1991*.

Part 3—Repeals

23 Repeal of regulatory legislation

The *Telecommunications Act 1989* and the *Telecommunications (Application Fees) Act 1989* are repealed.

24 Repeal of Acts relating to Telecom and OTC

The *Australian Telecommunications Corporation Act 1989* and the *OTC Act 1946* are repealed.

Part 4—Amendments consequential on Telecommunications Act 1991

25 Amendments consequential on new regulatory legislation

The Acts specified in Schedule 1 are amended as set out in that Schedule.

Part 5—Amendments consequential on Australian and Overseas Telecommunications Corporation Act 1991

26 Amendments consequential on formation of AOTC

The Acts specified in Schedule 2 are amended as set out in that Schedule.

Schedule 1—Amendments consequential on Telecommunications Act 1991

Section 25

AUSSAT Act 1984

Section 3 (definition of *Corporation*)

Omit the definition.

Section 4

Omit “1989”, substitute “1991”.

Sections 10, 10A and 10B

Repeal the sections.

Section 10C

Omit “that, by virtue of this Act, AUSSAT has the right to provide”, substitute “, the carrying on of any business or activity, or the exercise of any power or right, that AUSSAT is entitled to provide, carry on or exercise, as the case may be, under this Act or the *Telecommunications Act 1991*”.

Sections 11, 12 and 17

Repeal the sections.

Australian Broadcasting Corporation Act 1983

Section 3 (definition of *telegraph line*)

Omit “1989”, substitute “1991”.

Subsection 77(2)

Omit the subsection, substitute:

- (2) In respect of the erection, placing and maintenance of an electric line by a person under paragraph (1)(a), that person has the same

powers, and is subject to the same obligations, as are conferred or imposed on a general carrier under Division 3 of Part 7 of the *Telecommunications Act 1991* to install or maintain a facility within the meaning of that Act.

Australian Postal Corporation Act 1989

Section 11

Omit “1989”, substitute “1991”.

Australian Telecommunications Corporation Act 1989

Section 4

Omit “1989”, substitute “1991”.

Section 11

Omit “1989”, substitute “1991”.

Paragraph 28(a)

Add at the end “and”.

Paragraph 28(b)

Omit “45; and”, substitute “45.”.

Paragraph 28(c)

Omit the paragraph.

Section 30

Repeal the section.

Parts 8 and 9

Repeal the Parts.

Sections 96 and 97

Repeal the sections.

Section 102

Repeal the section.

Broadcasting Act 1942

Subsection 4(1) (definition of *telegraph line*)

Omit “1989”, substitute “1991”.

Subsection 74(3)

Omit the subsection, substitute:

- (3) In respect of the erection, placing and maintenance of an electric line by a person under paragraph (1)(a), that person has the same powers, and is subject to the same obligations, as are conferred or imposed on a general carrier under Division 3 of Part 7 of the *Telecommunications Act 1991* to install or maintain a facility within the meaning of that Act.

Crimes Act 1914

Section 3 (definition of *public authority under the Commonwealth*)

Omit “, and includes AUSSAT Pty Ltd and OTC Limited”.

Subsection 76A(1)

Insert:

carrier means:

- (a) a general carrier within the meaning of the *Telecommunications Act 1991*; or
- (b) a mobile carrier within the meaning of that Act; or
- (c) a person who supplies eligible services within the meaning of that Act under a class licence issued under section 209 of that Act.

Subsection 76D(1)

After “Commonwealth”, insert “or by a carrier”.

Paragraph 76D(2)(a)

After “Commonwealth”, insert “or by a carrier”.

Paragraph 76D(3)(a)

After “Commonwealth”, insert “or by a carrier”.

Section 76E

After “Commonwealth”, insert “or by a carrier”.

Section 85ZB (definitions of *AUSSAT*, *carrier*, *OTC* and *Telecom*)

Omit the definitions.

Section 85ZB

Insert:

carrier means:

- (a) a general carrier; or
- (b) a mobile carrier; or
- (c) a person who supplies eligible services under a class licence issued under section 209 of the *Telecommunications Act 1991*.

communication does not include a communication solely by means of radiocommunication.

telecommunications network means a system, or series of systems, for carrying communications by means of guided or unguided electromagnetic energy or both.

telecommunications service means a service for carrying telecommunications by means of guided or unguided electromagnetic energy or both.

After section 85ZB

Insert:

85ZBA Interpretation—person acting for a general or mobile carrier

For the purposes of this Part, a person who does any thing for or on behalf of a person who is, or persons at least one of whom is, a general carrier or a mobile carrier, is, in respect of:

- (a) the doing by that person of that thing; or
 - (b) any rental, fee or charge payable for or in relation to the doing by that person of that thing; or
 - (c) the operation by that person of a facility in connection with the doing of that thing; or
 - (d) a facility belonging to that person; or
 - (e) the operation by that person of a satellite;
- taken to be a carrier.

Section 85ZC

Omit “1989”, substitute “1991”.

Subsection 85ZK(2)

Omit “section 114 of the *Telecommunications Act 1989*”, substitute “section 253 of the *Telecommunications Act 1991*”.

Subsection 85ZKA(1)

- (a) Omit “Telecom,” (first occurring), substitute “a carrier,”.
- (b) Omit “supplied by Telecom,”, substitute “each of which is supplied by a carrier,”.

Paragraph 85ZKA(2)(a)

Omit “section 114 of the *Telecommunications Act 1989*”, substitute “section 253 of the *Telecommunications Act 1991*”.

Ombudsman Act 1976

Subsections 6(4D) and (4E)

Omit “Part 6 of the *Telecommunications Act 1989*”, substitute “Part 15 of the *Telecommunications Act 1991*”.

Subsection 6(4F)

Omit “1989”, substitute “1991”.

OTC Act 1946

Section 4

Omit “1989”, substitute “1991”.

Sections 36, 37 and 38

Repeal the sections.

Radiocommunications Act 1983

Subsection 3(1) (definition of *radiocommunications transmitter*)

Omit “1989”, substitute “1991”.

Subsection 3(1) (definition of *receiver*)

Omit “1975”, substitute “1991”.

Paragraph 24(2)(f)

Omit the paragraph.

Paragraphs 25(1)(j) and (k) and 35(4)(c) and (d)

Omit “(which may include conditions for or in relation to giving effect to provisions of Division 1 of Part 3 of the *Telecommunications Act 1989*)”.

Paragraph 38(2)(c)

Omit the paragraph.

Paragraphs 38(6)(b) and (c)

Omit “(which may include conditions for or in relation to giving effect to provisions of Division 1 of Part 3 of the *Telecommunications Act 1989*)”.

Satellite Communications Amendment Act 1988

Section 3

Repeal the section.

Sea Installations Act 1987

Schedule

Omit “*Telecommunications Act 1989*”, substitute “*Telecommunications Act 1991*”.

Telecommunications (Interception) Act 1979

Subsection 5(1) (definitions of *carrier*, *Corporation*, *employee of the Corporation* and *Managing Director*)

Omit the definitions.

Subsection 5(1)

Insert:

carrier means:

- (a) a general carrier within the meaning of the *Telecommunications Act 1991*; or
- (b) a mobile carrier within the meaning of that Act; or
- (c) a person who supplies eligible services within the meaning of that Act under a class licence issued under section 209 of that Act.

Managing Director, in relation to a carrier, means the chief executive officer (however described) of the carrier.

Subsection 5(1) (definitions of *equipment, facility and line*)

Omit “1989”, substitute “1991”.

Subsection 5(1) (definitions of *telecommunications network and telecommunications service*)

Omit the definitions, substitute:

telecommunications network means a system, or series of systems, for carrying communications by means of guided or unguided electromagnetic energy or both, but does not include a system, or series of systems, for carrying communications solely by means of radiocommunication.

telecommunications service means a service for carrying communications by means of guided or unguided electromagnetic energy or both, being a service the use of which enables communications to be carried over a telecommunications system operated by a carrier but not being a service for carrying communications solely by means of radiocommunication.

Subsection 5(3)

Omit “1989”, substitute “1991”.

Subsection 8(1)

Omit “the Corporation” (wherever occurring), substitute “a carrier”.

Subsections 11(1) and (2)

Omit “the Corporation”, substitute “a carrier”.

Subsection 11(8)

Omit “the Corporation” (first occurring), substitute “a carrier”.

Paragraphs 11(8)(a) and (b)

Omit “Corporation” (wherever occurring), substitute “carrier”.

Subsection 11(10)

Omit “the Corporation”, substitute “a carrier”.

Paragraph 11A(1)(a)

Omit “the Corporation”, substitute “a carrier”.

Subsection 11A(1)

Omit “Corporation” (last occurring), substitute “carrier”.

Subsection 11A(6)

Omit “the Corporation” (first occurring), substitute “a carrier”.

Paragraphs 11A(6)(a) and (b)

Omit “Corporation” (wherever occurring), substitute “carrier”.

Section 15

Omit “Corporation” (wherever occurring), substitute “carrier”.

Section 20A

Omit “the Corporation”, substitute “a carrier”.

Section 20B

Omit “the Corporation”, substitute “a carrier”.

Subsection 21(6)

Omit “the Corporation” (first occurring), substitute “a carrier”.

Paragraphs 21(6)(a) and (b)

Omit “Corporation” (wherever occurring), substitute “carrier”.

Paragraph 21(8)(a)

Omit “the Corporation”, substitute “a carrier”.

Section 25

Omit “Corporation” (wherever occurring), substitute “relevant carrier”.

Schedule 2—Amendments consequential on Australian and Overseas Telecommunications Corporation Act 1991

Section 26

Crimes Act 1914

Section 3 (definition of *Commonwealth officer*)

Omit from subparagraphs (d)(i), (ii) and (iii) “, the Australian
Telecommunications Corporation or OTC Limited”.

Freedom of Information Act 1982

Schedule 2 (Part II)

(a) Omit:

“Australian Telecommunications Corporation, in relation to
documents in respect of its competitive commercial
activities”.

(b) Omit:

“OTC Limited, in relation to documents in respect of its
competitive commercial activities”.

(c) Insert:

“Australian and Overseas Telecommunications Corporation
Limited, in relation to documents in respect of its competitive
commercial activities”.

Sea Installations Act 1987

Schedule

(a) Omit “*Australian Telecommunications Corporation Act
1989*” and “*OTC Act 1946*”.

- (b) After “*Air Navigation (Charges) Act 1952*”, insert
“*Australian and Overseas Telecommunications Corporation
Act 1991*”.

Note: On the commencement of the amendments of the *Crimes Act 1914* made by section 25 of, and Schedule 1 to, this Act, the headings to sections 76D and 76E of that Act are altered by omitting “Commonwealth facility” and substituting “certain facilities”.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe the amendment to be made. If, despite the misdescription, the amendment can be given effect as intended, the amendment is incorporated into the compiled law and the abbreviation “(md)” added to the details of the amendment included in the amendment history.

If a misdescribed amendment cannot be given effect as intended, the abbreviation “(md not incorp)” is added to the details of the amendment included in the amendment history.

Endnotes

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Transitional Provisions and Consequential Amendments) Act 1991	99, 1991	27 June 1991	s 3–23 and 25: 1 July 1991 (s 2(2)) s 24 and 26: 1 Feb 1992 (s 2(3) and gaz 1992, No S32) Remainder: 27 June 1991 (s 2(1))	
AUSSAT Repeal Act 1991	145, 1991	21 Oct 1991	Sch 1: 21 Oct 1991 (s 2(1))	—
Transport and Communications Legislation Amendment Act (No. 3) 1992	216, 1992	24 Dec 1992	s 63: 24 Dec 1992 (s 2(1))	—
Territories Legislation Amendment Act 2016	33, 2016	23 Mar 2016	Sch 5 (item 96): 1 July 2016 (s 2(1) item 7)	—

Telecommunications (Transitional Provisions and Consequential Amendments) Act 1991

27

Compilation No. 3

Compilation date: 1/7/16

Registered: 18/7/16

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 2	
s 3	am No 33, 2016
s 7	am No 216, 1992
Schedule 2	
Schedule 2	am No 145, 1991